

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erica Jung	Team: Squad #01	CCRB Case #: 202104797	☐ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 08/02/2021 8:12 PM, Tuesday, 10/26/2021 11:10 AM	Location of Incident: § 87(2)(b) 100 Church Street	18 Mo. SOL 2/2/2023	Precinct: 79		
Date/Time CV Reported Sun, 08/08/2021 9:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/12/2021 11:05 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Carlos Serrano	00000	946236	079 PCT
2. PO Colin Russell	19390	959956	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Shaun Clarke	07769	955823	079 PCT
2. POF Alexa Serrano	20206	968125	079 PCT
3. POM Jorge Zorrilla	16894	955698	079 PCT
4. POF Necibe Sinmazisik	28978	966858	079 PCT
5. PO Christopher Atancuri	27941	968948	079 PCT
6. SGT Michael Sinner	03674	934187	077 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . LT Carlos Serrano	Abuse: On August 2, 2021 in front of § 87(2)(b) Lieutenant Carlos Serrano threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . PO Colin Russell	Discourtesy: On August 2, 2021 in front of § 87(2)(b) Police Officer Colin Russell spoke discourteously to § 87(2)(b)	B . Substantiated
C . PO Colin Russell	Untruthful Stmt.: On October 26, 2021 at 100 Church Street, Police Officer Colin Russell provided a misleading official statement to the CCRB.	C . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On August 8, 2021, § 87(2)(b) called IAB and filed this complaint on behalf of himself. On August 12, 2021, the complaint was received at the CCRB.

On August 2, 2021, at around 8:12pm, § 87(2)(b) was walking down Fulton Street in Brooklyn when a woman he had been in an argument with started chasing him. Several police officers showed up at the scene to intervene in the altercation. Lt. Carlos Serrano, assigned to the 79th Precinct, threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority – Unsubstantiated**). § 87(2)(b) was telling the officers what had happened when PO Colin Russell, assigned to the 77th Precinct, said, “you don’t have to keep fucking saying it again” (**Allegation B: Discourtesy – Substantiated**). PO Russell provided a misleading official statement to the CCRB (**Allegation C: Untruthful Statement – Substantiated**). § 87(2)(g), § 87(4-b) was neither summonsed nor arrested.

The investigation obtained BWC footage of this incident from PO Russell, Lt. Serrano, and several other officers assigned to the 79th Precinct: PO Jorge Zorrilla, PO Shaun Clarke, PO Alexa Serrano, PO Necibe Sinmazisik, and PO Christopher Atancuri. There are six BWC videos in total (Board Reviews 01-06).

Findings and Recommendations

Allegation (A) Abuse of Authority: On August 2, 2021 in front of § 87(2)(b) Lieutenant Carlos Serrano threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that he was walking down Fulton Street on his way back home when he stopped to adjust his pants. § 87(2)(b) was a few feet away from § 87(2)(b) where a female civilian from the second floor of the building saw § 87(2)(b) threw water at him through her window, and told him, “stop beating off in front of my window.” § 87(2)(b) asked the female civilian what she was talking about, and the two argued with each other for several minutes before she came down and started following § 87(2)(b) down Fulton Street with a pot. The female civilian then threw the pot at § 87(2)(b) and several police officers showed up shortly thereafter. § 87(2)(b) asked the officers to arrest the female for attacking him with a pot, to which Lt. Serrano responded, “if I take her to jail, I’ll have to take you to jail” (Board Review 07).

PO Zorrilla’s BWC shows Lt. Serrano walking up to § 87(2)(b) and asking him where he was going. § 87(2)(b) tells him that he was going home and that he did not personally know the female civilian. § 87(2)(b) then says, “take her to jail. She attacked me with a pot. Take her to jail. Take her to jail. She attacked me with a pot and then followed me down the street. You look at those cameras? They follow me down the street.” The footage concludes after § 87(2)(b) states that the female civilian needed to be arrested and does not capture any conversation with Lt. Serrano (Board Review 03). None of the other BWC videos capture the conversation alleged between Lt. Serrano and § 87(2)(b) (Board Review 1-2, 4-6). Lt. Serrano did not activate his BWC for this incident because it had run out of battery from him working overtime this day (Board Review 08).

Lt. Serrano stated that he arrived at the scene of the incident and spoke with the female civilian who informed him that § 87(2)(b) was being disrespectful and threw a water bottle at her window. Lt. Serrano also overheard the female civilian telling another officer at the scene that § 87(2)(b) had exposed himself to her. None of the officers relayed any other information about the incident to Lt.

Serrano. Lt. Serrano asked the sergeant on the scene about what was happening, to which the sergeant told him that all the information he received was that there was a dispute. Lt. Serrano then evaluated the situation based on what the sergeant had told him and decided that his main concern was to disperse everyone from the immediate area because there had been many shootings at this location. At the scene, a crowd had formed, but Lt. Serrano did not recall how many people were there exactly. Eventually, everyone had left the scene, but § 87(2)(b) stayed, and a crowd began to form again as he kept stating that he wanted the female civilian arrested for attacking him with a pot. Lt. Serrano told § 87(2)(b) that there was no arrest to be made and that it was best for him to go home. Lt. Serrano did not recall saying, “if I take her to jail, I’ll take you to jail.” Lt. Serrano did not threaten to arrest § 87(2)(b) and would not have been able to arrest anyone based on when he arrived and what he observed on scene (Board Review 08).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Discourtesy: On August 2, 2021 in front of § 87(2)(b) Police Officer Colin Russell spoke discourteously to § 87(2)(b)

Allegation (C) Untruthful Statement: On October 26, 2021 at 100 Church Street, Police Officer Colin Russell provided a misleading official statement to the CCRB.

§ 87(2)(b) stated that he kept telling PO Russell what happened several times, to which PO Russell ignored him. PO Russell then said, “you don’t have to keep fucking saying it again,” to § 87(2)(b) (Board Review 07).

PO Russell’s BWC captures PO Russell approach § 87(2)(b) states that he was walking home when he stopped to fix his pants. § 87(2)(b) repeatedly tells PO Russell that the female civilian tried to attack him with a pot and needed to be in jail. At 02:56 PO Russell says, “My man, I’m not going to tell you again. Stop. Stop arguing; stop yelling. We heard you. We got it. Just relax.” § 87(2)(b) says, “I’m telling you she attacked me with a-.” At the 3:05 mark, PO Russell interrupts § 87(2)(b) and says, “I heard you the 400th fucking time. Alright? Relax” while shaking his right hand toward § 87(2)(b) punctuating his words (Board Review 06).

At 02:07, PO Zorilla’s BWC (Board Review 03) captures the audio of PO Russell’s above comment and shows his face when he says “I’m not going to tell you again. Stop.” PO Zorilla’s and PO Russell’s BWC shows that they were the only two officers speaking with § 87(2)(b) when the comment was made.

PO Russell stated that § 87(2)(b) said, “they threw a pot,” and “I want them arrested,” five to seven times. In response to this, PO Russell told § 87(2)(b) to relax and stop repeating himself. PO Russell did not recall saying, “you don’t have to keep fucking saying it again.” PO Russell was shown his BWC footage from IA #35. After being shown the footage from 02:57 to 03:09, PO Russell heard an officer saying, “I heard you the 400th fucking time.” PO Russell did not recognize the voice that said this and could not tell if it was his voice. PO Russell did not recall saying, “I heard you the 400th fucking time.” PO Russell stated that he did not use any discourteous language or profanity towards § 87(2)(b) at any point in the incident. PO Russell did not recall hearing any other officer say this to § 87(2)(b) (Board Review 09).

Patrol Guide Procedure 200-02 states that officers must respect the dignity of each individual and render their services with courtesy and civility (Board Review 10).

DAO-DCT Case number 2015-15012 states that a police officer is justified in using profanity when the statement(s) are used for the purpose of gaining control or communicating instruction during a dynamic situation. However, officers are unjustified in using profanity when the situation is under control and the statements serve no legitimate purpose but to belittle a civilian (Board Review 11).

While PO Russell did not admit or acknowledge that it was him who made the statement, he acknowledged telling § 87(2)(b) to relax and stop repeating himself, which are consistent with what PO Russell's BWC captures him saying shortly before making the statement and PO Russell is shaking his hand toward § 87(2)(b) and punctuating the statement as the discourteous statement is heard. Additionally, PO Zorrilla's BWC shows PO Russell's lips moving when he tells § 87(2)(b) "Man, I'm not going to tell you again. Stop." Shortly after, PO Zorrilla's BWC captures the same voice saying, "I heard you the 400th fucking time." Based on the BWC footage and PO Russell's testimony, the investigation determined that PO Russell made the alleged statement. While § 87(2)(b) appeared to be upset and frustrated as he spoke about what happened, he was standing still. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Administrative Guide 304-10 states that a misleading statement is a statement that is intended to misdirect the fact finder, and materially alter the narrative by making repeated claims of "I do not remember," or, "I do not know," when a reasonable person under similar circumstances would recall, or have been aware of, such material facts (Board Review 12).

§ 87(2)(g)

As noted above, the BWC showed that only PO Russell, PO Zorrilla, and § 87(2)(b) were involved in the conversation at that time. PO Zorrilla's BWC captures PO Russell telling § 87(2)(b) "Man, I'm not going to tell you again. Stop." Shortly after, PO Zorrilla's BWC captures the same voice making the discourteous statement, thereby excluding the possibility that PO Zorrilla made the statement himself. PO Russell acknowledged the other statements that he was heard making in the video. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Russell has been a member of service for six years and has been a subject in six CCRB complaints and 13 allegations, none of which were substantiated. § 87(2)(g)
- Lt. Serrano has been a member of service for 13 years and has been a subject in four CCRB complaints and seven allegations, of which three were substantiated:
 - 201510344 involved substantiated allegations of physical force, retaliatory summons, and discourtesy (action) against Lt. Serrano. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.

Mediation, Civil, and Criminal Histories

- Mediation was not accepting cases therefore it was not offered as an option.
- As of December 1, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 16).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator:	<u>Erica Jung</u> Signature	<u>Inv. Jung</u> Print Title & Name	<u>7/29/2022</u> Date
Squad Leader:	<u>Mgr. Joy Almeyda</u> Signature	<u></u> Print Title & Name	<u>8.4.22</u> Date